

State of California

BUSINESS AND PROFESSIONS CODE

Section 22675

22675. For purposes of this chapter, the following definitions apply:

(a) “Actioned” means a social media company, due to a suspected or confirmed violation of the terms of service, has taken some form of action, including, but not limited to, removal, demonetization, deprioritization, or banning, against the relevant user or relevant item of content.

(b) “Artificial intelligence” has the same definition as in Section 11546.45.5 of the Government Code.

(c) (1) “Content” means statements or comments made by users and media that are created, posted, shared, or otherwise interacted with by users on an internet-based service or application.

(2) “Content” does not include media put on a service or application exclusively for the purpose of cloud storage, transmitting files, or file collaboration.

(d) “Public or semipublic internet-based service or application” excludes a service or application used to facilitate communication within a business or enterprise among employees or affiliates of the business or enterprise, provided that access to the service or application is restricted to employees or affiliates of the business or enterprise using the service or application.

(e) “Social media company” means a person or entity that owns or operates one or more social media platforms.

(f) “Social media platform” means a public or semipublic internet-based service or application that has users in California and that meets both of the following criteria:

(1) (A) A substantial function of the service or application is to connect users in order to allow users to interact socially with each other within the service or application.

(B) A service or application that provides email or direct messaging services shall not be considered to meet this criterion on the basis of that function alone.

(2) The service or application allows users to do all of the following:

(A) Construct a public or semipublic profile for purposes of signing into and using the service or application.

(B) Populate a list of other users with whom an individual shares a social connection within the system.

(C) Create or post content viewable by other users, including, but not limited to, on message boards, in chat rooms, or through a landing page or main feed that presents the user with content generated by other users.

(g) “Terms of service” means a policy or set of policies adopted by a social media company that specifies, at least, the user behavior and activities that are permitted on

the internet-based service owned or operated by the social media company, and the user behavior and activities that may subject the user or an item of content to being actioned.

(Amended by Stats. 2024, Ch. 843, Sec. 1. (AB 2885) Effective January 1, 2025.)